

23STCV31774 23STCV31774

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Case Number: 23STCV31774 Hearing Date: June 29, 2026 Dept: 207

TENTATIVE
RULING

DEPARTMENT

207

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29, 2026

CASE NUMBER

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APPLICATIONS

Admitted
Pro Hac Vice

APPLICANTS

(1)
Alexandra R. French

(2)
Caitlyn Fields

Alexandra R. French and Caitlyn Fields of
Barnes & Thornburg, LLP, apply to be admitted pro hac vice as counsel for Cross-Defendants
Quanex Building Products Corporation and Quanex IG Systems, Inc. The applications are unopposed.

ANALYSIS

California Rules of Court rule 9.40
provides that an attorney in good standing in another jurisdiction may apply to
appear as counsel pro hac vice in the State of California by filing a verified
application together with proof of service by mail of a copy of the application
and notice of hearing on all parties who have appeared in the case and on the
State Bar of California at its San Francisco office, with payment of the
application fee, so long as that attorney is not a resident of the State of
California, and is not regularly engaged in substantial business, professional,
or other activities in the State of California. (Cal. Rules of Court, rule
9.40.)

The application must state: (1) the applicant's residence and office
addresses; (2) the courts to which the applicant has been admitted to practice
and the dates of admission; (3) that the applicant is a member of good standing
in those courts; (4) that the applicant is not currently suspended or disbarred
in any court; (5) the title of each court and cause in which the applicant has
filed an application to appear as counsel pro hac vice in this state in the
preceding two years, the date of each application, and whether or not it was
granted; and (6) the name, address, and telephone number of the active member
of the State Bar of California who is attorney of record in the local action.
(Cal. Rules of Court, rule 9.40(d).)

The Verified Applications provide most
this information, and indicate that the requisite application fees have been
paid.

However, instead of indicating the
title of each court and cause in which the applicant has filed an
application to appear as pro hac vice in this State in the preceding
two years, the date of each application, and whether or not such application as
granted, each moving Counsel simply indicates the cases in which they have been
admitted to practice in California in the preceding two years. That does not satisfy the requirement.

Furthermore, the proofs of service indicate counsel for all partes were served electronically. However, there is no proof of service demonstrating service on the State Bar by mail at its San Francisco office, as required by California Rules of Court, Rule 9.40(c), which provides: "A person desiring to appear as counsel pro hac vice in a superior court must file with the court a verified application together with proof of service by mail in accordance with Code of Civil Procedure section 1013a of a copy of the application and of the notice of hearing of the application on all parties who have appeared in the cause and on the State Bar of California at its San Francisco office. The notice of hearing must be given at the time prescribed in Code of Civil Procedure section 1005 unless the court has prescribed a shorter period." (Cal. Rules of Court, rule 9.40(c)(1), emphasis added.)

CONCLUSION AND ORDER

The Court denies both applications without prejudice as procedurally defective.

Counsel shall provide notice of the Court's ruling and file the notice with a proof of service forthwith.

DATED:

June 29, 2026 _____/s/_____

Michael E. Whitaker

Judge
of the Superior Court